

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

MOTION TO ACCEPT LATE-FILED DECLARATIONS

Pursuant to 46 C.F.R. § 502.102, Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) respectfully moves for the acceptance of foreign language declarations and verified translations of the same to be filed as Exhibits to its Response to Complainant Samsung Electronics America, Inc. (“SEA”) Supplemental Motion (“Response”) filed today. There is good cause to grant the requested relief. As required by the Commission’s rules, COSCO has conferred with SEA who states it has no objection to the relief requested.

In support of the relief requested, COSCO states as follows:

Four COSCO employees located in China, who have knowledge relevant to some assertions made by SEA in its June 10, 2026 Supplemental Motion, have provided declarations providing facts relevant to the matters raised therein. COSCO has worked diligently to prepare its Response, obtain verified English language translations of those declarations (originally made in Chinese language), and to file those verified translations pursuant to Commission Rule 46 C.F.R. § 502.7¹ within the ordered six-day deadline. Due to the twelve-hour time difference that

¹ “Every...exhibit...written in a language other than English and filed with the Commission or offered in evidence in any proceeding before the Commission...shall be filed or offered in the

effectively results in a full working day delay between the East Coast of United States and Shanghai, China, however, COSCO has not been able to obtain verified translations of the declarations for timely submission.

For the foregoing reasons, COSCO respectfully requests that the Presiding Officer accept into the record for her due consideration the late-filed declarations and verified translations thereof of four COSCO employees as Exhibits to the above Response, which will be filed as soon as possible.

DATED: June 16, 2026

Respectfully submitted,

/s/ Rebecca A. Fenneman

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman

Kaya C. Massey

Nicholas L. Webb

700 12th Street, NW, Suite 700

Washington, DC 20005

RFenneman@JeffreyFenneman.com

Kmassey@JeffreyFenneman.com

NWebb@JeffreyFenneman.com

/s/ Brian J. Whittaker

NIXON PEABODY LLP

Gordon L. Lang

Brian J. Whittaker

Martha A. Medina

799 9th Street, NW, Suite 500

Washington, DC 20001-5327

GLang@nixonpeabody.com

BWhittaker@nixonpeabody.com

MMedina@nixonpeabody.com

Attorneys for Respondent

COSCO Shipping Lines Co., Ltd.

language in which it is written and shall be accompanied by an English translation thereof duly verified under oath to be an accurate translation.”

CERTIFICATE OF SERVICE

I certify that on the 16th day of June, 2026, a true and correct copy of the foregoing document, **Respondent's Motion to Accept Late-Filed Declarations**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT:

HOLLAND & KNIGHT, LLP

Christopher R. Nolan

chris.nolan@hklaw.com

Gerald A. Morrissey, III

gerald.morrissey@hklaw.com

Allison Skopec

Allison.Skopec@hklaw.com

Kristine O. Little

kristine.little@hklaw.com

Matthew DiBlasi

Matthew.DiBlasi@hklaw.com

Marisa Marinelli

Marisa.Marinelli@hklaw.com

/s/ Rebecca A. Fenneman